No. 25-5660

IN THE UNITED STATES COURT OF APPEALS
FOR THE SIXTH CIRCUIT

NetChoice, LLC,
Plaintiff-Appellant,

v.

Jonathan Skrmetti, in his official capacity as the Tennessee Attorney General & Reporter,
Defendant-Appellee.

On Appeal from the United States District Court for the Middle District of Tennessee, No. 3:24-cv-01191

BRIEF OF APPELLANT NETCHOICE

Jared B. Magnuson
LEHOTSKY KELLER COHN LLP
3280 Peachtree Road NE
Atlanta, GA 30305

Scott A. Keller
Steven P. Lehotsky
Jeremy Evan Maltz
LEHOTSKY KELLER COHN LLP
200 Massachusetts Ave. NW, Suite 700
Washington, DC 20001
scott@lkcfirm.com

Joshua P. Morrow
LEHOTSKY KELLER COHN LLP
408 W. 11th Street, 5th Floor
Austin, TX 78701
(512) 693-8350

Counsel for Plaintiff-Appellant NetChoice

CIRCUIT RULE 26.1 DISCLOSURE STATEMENT

NetChoice makes the following disclosure under Sixth Circuit Rule 26.1:

1. Is NetChoice a subsidiary or affiliate of a publicly owned corporation?

No. NetChoice is a nonprofit trade association organized under the laws of the District of Columbia.

2. Is there a publicly owned corporation, not a party to the appeal or an amicus, that has a financial interest in the outcome?

None known.

/s/ Scott A. Keller

Scott A. Keller

Counsel of Record for Plaintiff-Appellant NetChoice

TABLE OF CONTENTS

Page

TABLE OF AUTHORITIES iii
STATEMENT IN SUPPORT OF ORAL ARGUMENT v
INTRODUCTION 1
STATEMENT OF JURISDICTION 3
STATEMENT OF ISSUES 3
STATEMENT OF THE CASE 4
A. Factual background 4
1. NetChoice members' websites curate, disseminate, and enable vast amounts of speech protected by the First Amendment. ... 4
2. Parents already have many tools to oversee how their children use the internet. 5
SUMMARY OF THE ARGUMENT 5
ARGUMENT 6
I. This Act's speech restrictions irreparably harm NetChoice's members and their users, and the district court's irreparable-harm analysis violates this Court's precedent. 6
A. The record contains ample evidence of irreparable harm. 6
II. NetChoice established the presumed irreparable injury because it is likely to succeed on the merits of its claims that the Act's speech restrictions violate the First Amendment. 7
A. The Act's parental-consent requirement for minors to access fully protected speech violates the First Amendment. 7
CONCLUSION 8
CERTIFICATE OF COMPLIANCE 9
CERTIFICATE OF SERVICE 10
DESIGNATION OF DISTRICT COURT RECORD 11

TABLE OF AUTHORITIES

Cases: **Page(s)**

Brown v. Ent. Merchs. Ass'n,
564 U.S. 786 (2011) 1, 7

Commonwealth v. Biden,
57 F.4th 545 (6th Cir. 2023) 2, 6

Connection Distrib. Co. v. Reno,
154 F.3d 281 (6th Cir. 1998) 2

Elrod v. Burns,
427 U.S. 347 (1976) 6

Free Speech Coal., Inc. v. Paxton,
145 S. Ct. 2291 (2025) 1

Moody v. NetChoice, LLC,
603 U.S. 707 (2024) 4

Morales v. Trans World Airlines, Inc.,
504 U.S. 374 (1992) 5

NetChoice, LLC v. Griffin,
2025 WL 978607 (W.D. Ark. Mar. 31, 2025) 5

Ohio v. EPA,
603 U.S. 279 (2024) 2, 6

Packingham v. North Carolina,
582 U.S. 98 (2017) 1, 4

Planet Aid v. City of St. Johns,
782 F.3d 318 (6th Cir. 2015) 2

Roman Cath. Diocese of Brooklyn v. Cuomo,
592 U.S. 14 (2020) 6

Virginia v. Am. Booksellers Ass'n, Inc.,
484 U.S. 383 (1988) 2, 3

Winter v. Nat. Res. Def. Council, Inc.,
555 U.S. 7 (2008) 1

Statutes:

Tenn. Code Ann. § 47-18-5703 ..... 1, 7

STATEMENT IN SUPPORT OF ORAL ARGUMENT

Although the district court's error in this case is plain, the important First Amendment and preliminary-injunction issues in this case warrant oral argument.

INTRODUCTION

Tennessee House Bill 1891 ("Act") violates the First Amendment by restricting fully protected speech on "social media" websites in multiple ways. The Act targets specific websites based on their content. And it restricts users' access to, and engagement with, protected speech by requiring those websites to obtain (1) age verification for all users, § 47-18-5703(a)(1); and (2) parental consent for minors, § 47-18-5703(a)(2).[1] These requirements violate the First Amendment. *E.g.*, *Free Speech Coal., Inc. v. Paxton*, 145 S. Ct. 2291, 2309 (2025) ("FSC") ("submitting to age verification is a burden on the exercise of" the "right to access" protected speech); *Packingham v. North Carolina*, 582 U.S. 98, 107 (2017) (First Amendment protects "access" to social media websites); *Brown v. Ent. Merchs. Ass'n*, 564 U.S. 786, 795 n.3 (2011) (governments lack the "power to prevent children from hearing or saying anything without their parents' prior consent").

Yet the district court here erroneously denied NetChoice's motion for a preliminary injunction preventing the Act's enforcement against NetChoice's covered members. It held that NetChoice did not establish irreparable harm, without first considering the merits of NetChoice's First Amendment challenge—or the implications those irreparable harms have on "the balance of equities" and "public interest." *Winter v. Nat. Res. Def. Council, Inc.*, 555 U.S. 7, 32 (2008).

[1] Statutory citations refer to the Tennessee Code. This brief refers to both "websites" and "applications," § 47-18-5702(9)(A), as "websites."

The record here contains ample evidence of real and ongoing irreparable harm. In addition, all NetChoice members must expend "unrecoverable compliance costs"—which this Court and the Supreme Court have recognized constitute irreparable harm. *Commonwealth v. Biden*, 57 F.4th 545, 556 (6th Cir. 2023); *see Ohio v. EPA*, 603 U.S. 279, 292 (2024). And preventing the grave irreparable harms imposed by Tennessee's restrictions on the dissemination of—and access to—speech are in the public interest because "it is always in the public interest to prevent the violation of a party's constitutional rights." *Connection Distrib. Co. v. Reno*, 154 F.3d 281, 288 (6th Cir. 1998) (citation omitted).

In denying NetChoice a preliminary injunction, the district court flouted this Court's instruction that "the determination of whether [plaintiff] is likely to succeed on the merits of its First Amendment claim controls the question of the validity of the preliminary injunction." *Planet Aid v. City of St. Johns*, 782 F.3d 318, 323 (6th Cir. 2015).

The district court committed further errors. Although the district court acknowledged that Defendant could enforce the Act at any time, it denied relief because NetChoice could not disprove the court's improper assumption that any enforcement (and thus injury) is not sufficiently "imminent" to justify injunctive relief. But the "State has not suggested that the newly enacted law will not be enforced, and [there is] no reason to assume otherwise." *Virginia v. Am. Booksellers Ass'n, Inc.*, 484 U.S. 383, 393 (1988). So NetChoice has "alleged an

actual and well-founded fear that the law will be enforced against" its regulated members. *Id.*

STATEMENT OF JURISDICTION

The district court had subject-matter jurisdiction under 28 U.S.C. §§ 1331 and 1343(a), and it had authority to grant relief under 42 U.S.C. § 1983 and 28 U.S.C. §§ 1651 and 2201(a). This Court has appellate jurisdiction under 28 U.S.C. § 1292(a)(1). The district court denied NetChoice's motion for preliminary injunction on June 18, 2025, Order, R.79, Page ID # 2365, and NetChoice timely filed its notice of appeal on July 18, 2025, Notice, R.83, Page ID # 2402.

STATEMENT OF ISSUES

1. Whether the district court erred by denying NetChoice's motion for preliminary injunction, by concluding that NetChoice failed to demonstrate irreparable harm without considering whether NetChoice was likely to succeed on the merits of its First Amendment arguments (creating a presumption of irreparable harm), the balance of the equities, or the public interest.

2. Whether the district court erred by denying NetChoice's motion for preliminary injunction, by improperly concluding that: (a) any harms are not "imminent"; (b) First Amendment harms to NetChoice members' users are not relevant to irreparable harm; and (c) unrecoverable compliance costs are not irreparable harm.

STATEMENT OF THE CASE

A. Factual background

1. NetChoice members' websites curate, disseminate, and enable vast amounts of speech protected by the First Amendment.

NetChoice is a leading internet trade association. Cleland Decl., R.8-2, Page ID ## 60-61. Under the Act's coverage definition, the Act regulates websites operated by the following NetChoice members: (1) Automattic (Tumblr); (2) Discord; (3) Dreamwidth; (4) Meta (Facebook, Instagram, and Threads); (5) Nextdoor; (6) Pinterest; (7) Reddit; (8) Snap Inc. (Snapchat); (9) X; and (10) YouTube. Cleland Decl., R.8-2, Page ID # 67.[2] This brief refers to members with services the Act regulates as, simply, "members."

The Act regulates NetChoice members based on their shared speech-facilitating functions. It is aimed at "social media" websites that "allow users to upload content . . . to share [it] with others," where those "viewing the content can" "react to it, comment on it, or share it themselves." *Moody v. NetChoice, LLC*, 603 U.S. 707, 719 (2024). As a result, members are covered if they "allow[] users to gain access to information and communicate with one another about it." *Packingham*, 582 U.S. at 107.

[2] Automattic, Discord, and Reddit joined NetChoice after litigation began, and are included in NetChoice's First Amended Complaint (R.88)—filed after this appeal was docketed. Amended Complaint, R.88, Page ID # 2422.

2. Parents already have many tools to oversee how their children use the internet.

"[P]arents may rightly decide to regulate their child's use of social media . . . . And many tools exist to help parents with this endeavor." *NetChoice, LLC v. Griffin*, 2025 WL 978607, at *3 (W.D. Ark. Mar. 31, 2025).

Parents can control what devices minors can access—and when. Cleland Decl., R.8-2, Page ID # 62. Not all devices are internet-enabled. *Id.* And devices themselves come with many built-in parental-control options. Cleland Decl., R.8-2, Page ID # 63.

SUMMARY OF THE ARGUMENT

NetChoice established irreparable harm, including based on its likelihood of success on the merits of its First Amendment claims, the unrecoverable compliance costs its covered members face, and the infringements on users' free-speech rights.

NetChoice's covered members currently face the "Hobson's choice" of either violating the Act and "expos[ing] themselves to potentially huge liability" or "suffer[ing] the injury of obeying the law during the pendency of the proceedings and any further review." *Morales v. Trans World Airlines, Inc.*, 504 U.S. 374, 381 (1992). In the face of that choice, NetChoice member Nextdoor has stopped permitting Tennessee minors to access Nextdoor. Motion, R.42, Page ID ## 1851-52.

In addition, all NetChoice covered members likewise must expend unrecoverable compliance costs to implement the Act's unconstitutional speech restrictions. These "unrecoverable compliance costs" are irreparable harms to covered websites under binding precedent. *Biden*, 57 F.4th at 556; *see Ohio*, 603 U.S. at 292 (same).

ARGUMENT

I. This Act's speech restrictions irreparably harm NetChoice's members and their users, and the district court's irreparable-harm analysis violates this Court's precedent.

A. The record contains ample evidence of irreparable harm.

The uncontested record evidence demonstrates that NetChoice members face two kinds of irreparable harm from the Act's enforcement: (1) First Amendment harms; and (2) unrecoverable compliance costs.

One NetChoice member—Nextdoor—stopped disseminating fully protected speech to minors in Tennessee because the Act took effect without an injunction. As a result, both Nextdoor and Tennessee minors who would like to use Nextdoor have suffered—and continue to suffer—the First Amendment harms that this Court's precedent presumes. This "loss of First Amendment freedoms . . . unquestionably constitutes irreparable injury." *Cuomo*, 592 U.S. at 19 (quoting *Elrod v. Burns*, 427 U.S. 347, 373 (1976)).

This harm will persist unless and until a court issues an order enjoining enforcement of the Act. And these harms are irreparable: When NetChoice prevails

on the merits in this case, Nextdoor will not be able to go back in time to provide minor users in Tennessee access to information about the Spring 2025 performances at the local community theater that those minors missed. Nor will those minors be able to engage in the time-sensitive speech that they missed, or advertise their summer 2025 landscaping services. Those are quintessential First Amendment irreparable harms.

II. NetChoice established the presumed irreparable injury because it is likely to succeed on the merits of its claims that the Act's speech restrictions violate the First Amendment.

A. The Act's parental-consent requirement for minors to access fully protected speech violates the First Amendment.

The Act restricts minors' access to fully protected speech by requiring websites to secure parental consent before permitting minors to create accounts. § 47-18-5703(a)(2). This violates Supreme Court precedent, which holds that the government cannot require minors to obtain their "parents' prior consent" to engage in protected speech. *Brown*, 564 U.S. at 795 n.3.

CONCLUSION

This Court should reverse the district court's judgment, directing the district court to preliminarily enjoin Defendant's enforcement of the Act.

Dated: September 3, 2025

Respectfully submitted,

/s/ Scott A. Keller
Scott A. Keller
Counsel for Plaintiff-Appellant
LEHOTSKY KELLER COHN LLP
200 Massachusetts Ave. NW, Suite 700
Washington, DC 20001
(512) 693-8350
scott@lkcfirm.com

CERTIFICATE OF COMPLIANCE

This brief complies with: (1) the type-volume limitation of Federal Rule of Appellate Procedure 32(a)(7)(B) because it contains 1,472 words, excluding the parts of the brief exempted by Rule 32(f); and (2) the typeface requirements of Rule 32(a)(5) and the type style requirements of Rule 32(a)(6) because it has been prepared in a proportionally spaced typeface (14-point Liberation Serif) using Typst 0.15.0. The word count is computed from the markdown source of this brief.

/s/ Scott A. Keller	September 3, 2025
Signature	Date

CERTIFICATE OF SERVICE

I certify that on September 3, 2025, this brief was served via CM/ECF on all registered counsel and transmitted to the Clerk of the Court.

/s/ Scott A. Keller — Signature

September 3, 2025 — Date

DESIGNATION OF DISTRICT COURT RECORD

Appellant NetChoice designates the following filings from the District Court's electronic records under Sixth Circuit Rules 28(b)(1)(A)(i) and 30(g)(1):

Date Filed	R.No.; Page ID #	Description of Document
October 3, 2024	R.1; Page ID ## 1-32	NetChoice's Complaint for Declaratory and Injunctive Relief
October 3, 2024	R.8; Page ID ## 51-52	NetChoice's Motion for Preliminary Injunction
October 3, 2024	R.8-2; Page ID ## 59-70	Declaration of Bartlett Cleland (NetChoice)
October 3, 2024	R.8-3; Page ID ## 71-83	Declaration of Gautham Pai (Nextdoor)
October 3, 2024	R.8-4; Page ID ## 84-99	Declaration of Denise Paolucci (Dreamwidth)
October 3, 2024	R.9; Page ID ## 100-30	NetChoice's Memorandum in Support of Motion for Preliminary Injunction
October 16, 2024	R.23; Page ID # 175	Order Granting Joint Motion for Scheduling Order
January 2, 2025	R.42; Page ID ## 1850-54	NetChoice's Motion to Ascertain Status
January 3, 2025	R.43; Page ID ## 1855-57	Defendant's Opposition to Motion to Ascertain Status
January 7, 2025	R.45; Page ID ## 1859-63	NetChoice's Reply in Support of Motion to Ascertain Status
January 15, 2025	R.47; Page ID # 1868	Order of Recusal
January 16, 2025	R.48; Page ID ## 1869-74	NetChoice's Motion for Temporary Restraining Order and Renewed Motion for Preliminary Injunction

February 14, 2025	R.58; Page ID ## 1993-2006	Order Denying Temporary Restraining Order
June 18, 2025	R.78; Page ID ## 2337-64	Memorandum Opinion of Court
June 18, 2025	R.79; Page ID # 2365	Order Denying Preliminary Injunction